

**Outcome of your complaint to the NDIS Quality and Safeguards Commission
4-38025028094 [SEC=OFFICIAL]**

From: Complaints Contact <ComplaintsContact@ndiscommission.gov.au>

Date: Tue, 30 Aug 2022 07:05:37 +0000

Source: Gmail export, not an official PDF

Dear Barren Dodger

Complaint # 4-38025028094

Thank you for making a complaint to the NDIS Quality and Safeguards Commission (NDIS Commission) about Plan Partners & Salt Water Clinic

During our conversation on 25 July 2022, you raised various complaints about other Government organisations' treatment of Richard McLean. The NDIS Quality and Safeguards Commission regulates NDIS providers in relation to the quality and safety of NDIS-funded supports and services. Therefore, we cannot take any action in relation to complaints about other government organisations as these matters are not within the regulatory scope of the NDIS Commission.

On the same call you advised that you would forward further information about Richard and the issues with his NDIS providers, to me through email. A request for information was sent on the 25 July 2022 and a follow up call and email was made on 29 August 2022.

Further to our email below, we have assessed the details we currently have on hand in relation to your complaint and it has been decided there is insufficient information for us to take any further action. This decision to close your complaint has been made in accordance with sections 16(3)(a) and 17(1)(f) of the National Disability Insurance Scheme (Complaints Management and Resolution) Rules 2018.

I accept that you may be disappointed with this decision, but I hope you understand the reasons for it.

If you believe the decision to close this complaint is wrong, you can ask for it to be reconsidered. You have 42 days from today to ask for a reconsideration of the decision and you can do this by calling us on 1800 035 544, sending an email to contactcentre@ndiscommission.gov.au <<mailto:contactcentre@ndiscommission.gov.au>>, or by writing to:

NDIS Commission Feedback
PO Box 210
PENRITH NSW 2750

In your request for a reconsideration, please quote complaint # 4-38025028094 and state why you believe the decision to close this complaint is wrong.

Please contact us again if you need to make another complaint about the quality or safety of any NDIS-funded supports or services. You can call us on 1800 035 544 or complete the online complaint contact form <<https://forms.business.gov.au/smartforms/servlet/SmartForm.html?formCode=PRD00-OCF>>.

Yours sincerely,

Christopher Alan
Complaints Contact Officer
Complaints Contact Team | ACT, NSW, SA, VIC, QLD & WA
P: 1800 035 544

E: ComplaintsContact@ndiscommission.gov.au<mailto:ComplaintsContact@ndiscommission.gov.au>

W: www.ndiscommission.gov.au<http://www.ndiscommission.gov.au/>

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The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

From: Complaints Contact

Sent: Tuesday, 30 August 2022 4:47 PM

To: 'barrandodger@gmail.com' <barrandodger@gmail.com>

Subject: Acknowledgement of your complaint to the NDIS Quality and Safeguards Commission
4-38025028094 [SEC=OFFICIAL]

Dear Barren Dodger

Your complaint about Plan Partners

COMPLAINT # 4-38025028094

Thank you for contacting us on the 25 July 2022, about services provided by Plan Partners to Richard Mclean.

The NDIS Commission handles complaints about NDIS services or supports that were not provided in a safe and respectful way, or to an appropriate standard. We can also help if an NDIS provider has not helped you resolve a complaint.

I've attached a copy of our brochure, 'How we deal with Complaints'<<https://www.ndiscommission.gov.au/document/2331>> for your information.

An advocate may be able to assist you with your complaint. You can locate an advocate using the Disability Advocacy Finder | Ask Izzy<<https://askizzy.org.au/disability-advocacy-finder>>

Thank you for bringing this matter to our attention.

If you would like further information about the NDIS Commission, please visit our website<<http://www.ndiscommission.gov.au/>>.

Yours sincerely,

Christopher Alan

Complaints Contact Officer

Complaints Contact Team | ACT, NSW, SA, VIC, QLD & WA

P: 1800 035 544

E: ComplaintsContact@ndiscommission.gov.au<mailto:ComplaintsContact@ndiscommission.gov.au>

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From: Complaints Contact

Sent: Monday, 29 August 2022 1:42 PM

To: 'barrandodger@gmail.com' <barrandodger@gmail.com<mailto:barrandodger@gmail.com>>

Subject: Follow up request for information # 4-38025028094 [SEC=OFFICIAL]

Dear Barren Dodger

Complaint # 4-38025028094

The NDIS Quality and Safeguards Commission contacted you on 25 July 2022 & 29 August 2022 to request information in relation to concerns that you have raised about Salt Water Clinic & Plan Partners.

To progress your complaint we are seeking more detailed information to assist with further enquiries, please reply to our email sent on 25 July 2022.

Alternatively you can call us on 1800 035 544 and quote 4-38025028094 if you prefer to provide these details over the phone.

NDIS Commission does encourage that you try to resolve concerns directly with the service provider should you feel comfortable to do so. I have also shared below a link to locate an advocate should you feel one may be helpful for you.

Disability advocacy | NDIS Quality and Safeguards Commission

([ndiscommission.gov.au](https://www.ndiscommission.gov.au/participants/disability-advocacy))<<https://www.ndiscommission.gov.au/participants/disability-advocacy>>

If we do not hear from you by 30 August 2022 we will make a decision on how we will action your complaint based on the information you have provided. Where there is not enough information to allow us to progress, we may decide to take no further action at this time.

If we decide to take no further action and you want to progress your complaint you can contact us, with additional information about your concerns, to lodge a new complaint.

Yours sincerely,

Christopher Alan

Complaints Contact Officer

Complaints Contact Team | ACT, NSW, SA, VIC, QLD & WA

P: 1800 035 544

E: ComplaintsContact@ndiscommission.gov.au<<mailto:ComplaintsContact@ndiscommission.gov.au>>

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From: Complaints Contact

Sent: Monday, 25 July 2022 5:15 PM

To: 'barrandodger@gmail.com' <barrandodger@gmail.com<mailto:barrandodger@gmail.com>>

Subject: Request for information NDIS Quality and Safeguards Commission # 4-38025028094
[SEC=OFFICIAL]

Dear Barren Dodger

Complaint # 4-38025028094

The NDIS Quality and Safeguards Commission contacted you on 25 July 2022 to request information in relation to concerns that you have raised about Salt Water Clinic & Plan Partners.

You requested to send further details through email. I am seeking clarification that you wish to progress your complaint, and if so, I require some more detailed information to assist with further enquiries.

The further information we are requiring can be found in this email body below, please provide this requested information in reply to this email. Alternatively you can call us on 1800 035 544 and quote 4-38025028094 if you prefer to provide these details over the phone.

NDIS Commission does encourage that you try to resolve concerns directly with the service provider should you feel comfortable to do so. I have also shared below a link to locate an advocate should you feel one may be helpful for you.

An advocate may be able to assist you with your complaint. You can locate an advocate using the Disability Advocacy Finder | Ask Izzy<<https://askizzy.org.au/disability-advocacy-finder>>

If we do not hear from you by 8 July 2022 we will make a decision on how we will action your complaint based on the information you have provided. Where there is not enough information to allow us to progress, we may decide to take no further action at this time.

If we decide to take no further action and you want to progress your complaint you can contact us, with additional information about your concerns, to lodge a new complaint.

Requested information to progress your complaint

COMPLAINANT DETAILS

Name: Barren Dodger

Phone: +610409847076

Email: barrandodger@gmail.com<<mailto:barrandodger@gmail.com>>

WOULD YOU LIKE TO REMAIN ANONYMOUS, CONFIDENTIAL OR BE IDENTIFIED IN THIS COMPLAINT? (see below for further information)

REQUESTED INFORMATION ABOUT THE NDIS PARTICIPANT

NAME OF PARTICIPANT: Richard Mclean

ADDRESS OF PARTICIPANT:

TYPE OF ADDRESS: (e.g. private rental, housing, supported independent living, short term accommodation)

LENGTH OF TIME AT THIS ADDRESS:

DOB:

IDENTIFY AS ABORIGINAL OR TORRES STRAIT ISLANDER?

NDIS NUMBER:

DISABILITY:

COMMUNICATION PREFERENCE:

ARE THERE ANY BEHAVIOURS OF CONCERN?

CONTACT NUMBER AND EMAIL:

DOES THE PARTICIPANT PROVIDE CONSENT TO HAVE THE COMPLAINT LODGED?

IS IT OKAY TO IDENTIFY THE PARTICIPANT IN THIS COMPLAINT?

IS THERE A GUARDIAN IN PLACE ? IF SO, WHAT ARE THE GUARDIANS FUNCTIONS?

IS THERE A SUPPORT COORDINATOR? IF SO, PLEASE ADVISE OF NAME AND CONTACT DETAILS.

HAS AN ADVOCATE BEEN ENGAGED ? IF SO, PLEASE ADVISE OF NAME AND CONTACT DETAILS.

PROVIDER DETAILS

HAS A COMPLAINT BEEN RAISED WITH THE PROVIDER?

IF NOT, WHAT IS THE REASON NO COMPLAINT HAS BEEN MADE?

IS THE PROVIDER AWARE OF THE CONCERNS?:

IF YES, WHAT WAS THE RESPONSE?

NAME OF PROVIDER: (please provide abn if the provider is a sole trader) Salt Water Clinic & Plan Partners

WHAT SUPPORTS DO THEY PROVIDE TO THE PARTICIPANT?

PLEASE PROVIDE NAME, CONTACT DETAILS AND POSITION OF THE CONTACT PERSON FROM THE PROVIDER:

COMPLAINT DETAILS: (You can provide additional detailed information about the raised issues in your complaint under this section)

SAFETY QUESTIONS: (Please read through the safety questions below carefully and provide information to the best of your knowledge)

1. Are you concerned about the safety of the participant?
2. Is there an immediate risk to the participant?
3. Is the provider currently providing service supports to the participant?
4. Are there any formal or informal supports available to participant?
5. Have you taken any steps to address the risk?
6. Have the concerns been reported to the provider or police?

7. Does the participant need immediate assistance?

8. Are you able to contact the participant impacted?

WHAT OUTCOME ARE YOU SEEKING?

Please note: Supporting information regarding the issues you have raised in your complaint can also be sent in reply to this email.

Anonymous Complainant -Contact details will be removed from complaint record including your name and we will not be able to contact you regarding queries, updates or an outcome due to not being able to identify you after all your details have been removed.

Confidential Complainant - Contact details will be retained, however your identity will not be disclosed to the provider.

Identified Complainant -Your name will be disclosed to provider.

Yours sincerely,

Christopher Alan

Complaints Contact Officer

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